

		These three motions were subsequently filed on 11/18/24 and 11/19/24. (ROA 150, 154, 158.) Pursuant to Code Civ. Proc., § 2030.250, “[t]he party to whom the interrogatories are directed shall sign the response under oath unless the response contains only objections.” (See Code Civ. Proc., § 2031.250 re document demands, and Code Civ. Proc., § 2033.240 re requests for admission.) Unverified responses are tantamount to no responses at all. (See <i>Id.</i>; <i>Appleton v. Sup.CL (Cook)</i> (1988) 206 Cal.App.3d 632,636; <i>Zorro Inv. Co. v. Great Pacific Securities Corp.</i> (1977) 69 Cal.App.3d 907, 914.) Accordingly, Plaintiff requests an order compelling Defendants’ verifications to the discovery at issue as well as monetary sanctions. In opposition, Defendant states that on 1/14/25, after the motions were filed, Defendant served the subject verifications to the discovery, and thereafter verified supplemental responses. (Andrews Dec. ¶18, Exh. A.) Because verified responses ultimately were served, the motion is moot, except with respect to the issue of sanctions. While Defendant argues that sanctions should not be awarded because Plaintiff fails to demonstrate prejudice, there is no requirement that a party moving to compel discovery responses demonstrate prejudice in order to obtain an award of sanctions. Code Civ. Proc., § 2030.290(c) states: “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (See Code Civ. Proc., § 2031.300(c) re inspection demands and § 2033.290(d) re Requests for Admission.) “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, <u>or the requested discovery was provided to the moving party after the motion was filed.</u>” (CRC, Rule 3.1348 [emphasis added].) Verifications, which are required under the Code of Civil Procedure, were not served until four months after the discovery was propounded. The Court finds that sanctions are warranted here and awards Plaintiff \$610.00 per motion (\$1830.00 total) to be paid within 30 days. Plaintiff shall give notice.
108	2023-01332900 Raynor vs. Hurricanes Bar and Grill	Motion for Protective Order Defendant Hurricanes Bar and Grill’s motion for protective order is denied. Plaintiff Maddison Raynor is awarded sanctions of \$1,985 against Defendant. Code Civ. Proc. §§ 2017.020(b), 2019.030(c). The Discovery Act provides generally for the court’s ability to limit or shape discovery, including by protective order: The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursu

a motion for protective order by a party or other affected person. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.

Code Civ. Proc. § 2017.020(a).

Also,

(a) The court shall restrict the frequency or extent of use of a discovery method provided in Section 2019.010 if it determines either of the following:

(1) The discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive.

(2) The selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.

(b) The court may make these determinations pursuant to a motion for a protective order by a party or other affected person. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.

Code Civ. Proc. § 2019.030.

Defendant's Meet and Confer Efforts were Insufficient

"A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion."

Code Civ. Proc. § 2016.040. The meet and confer requirement is designed "to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order.... This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes." *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal. App. 4th 1006, 1016 (quoting *Townsend v. Superior Court* (1998) 61 Cal. App. 4th 1431, 1435) (internal quotations and citations omitted). There must be a serious effort at negotiation and informal resolution. *Clement v. Alegre* (2009) 177 Cal. App. 4th 1277, 1294. "[T]he law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." *Id.*

"[T]he statute requires that there be a serious effort at negotiation and informal resolution." *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1438.

Defendant's counsel's efforts do not meet the required standard. Neither her communications nor her efforts reflect a good faith attempt to negotiate and resolve the issue of when Plaintiff could do a site inspection in conditions as close as possible to those when Plaintiff fell rather than during the time slot preferred by Defendant.

In support of Defendant's motion for protective order, its counsel filed a declaration explaining that Plaintiff cancelled a scheduled site inspection – set for the morning before the bar and grill opened – because he wanted a site inspection at night since that is when Plaintiff slipped and fell. [Torki Decl. (ROA #46), ¶¶ 15-18 and Exs. M-O.] In response, on 8/12/24 Defendant's counsel informed Plaintiff's counsel that it would be too burdensome on Defendant to have to shut down the bar and grill during its peak business hours for a site inspection. She informed him that Defendant would seek a protective order against an inspection during business hours. She also offered to meet and confer further. [*Id.*, Ex. P.]

That is where Defendant's counsel's meet and confer declaration ends. Defendant did not file its motion until 10/30/24, over 2½ months after the email set forth in Exhibit P to the moving papers.

Prior to the filing of the instant motion, on 10/3/24, Plaintiff's counsel offered two alternatives to avoid any burden on Defendant's business: (1) a nighttime inspection after the bar and grill was closed business for the evening; or (2) a daytime inspection utilizing blackout curtains to substantially resemble the conditions at the time the subject incident occurred. [Perry Decl. (ROA #124), ¶ 3.]

Other than Defendant's counsel expressing some concern about the parties having to be present in the middle of the night, Defendant's counsel did not respond to Plaintiff's offers – even after follow-up. Rather, Defendant filed and served its motion for protective order.

Taken together, this record does not present facts showing a reasonable and good faith attempt by Defendant at an informal resolution. This alone is grounds to deny the motion to compel.

Merits

On its face Defendant's motion only seeks an order preventing Plaintiff from conducting a site inspection during business hours.

In her opposition, Plaintiff points out that she was not seeking to perform an inspection during Defendant's business hours. She wants a site inspection that more closely approximates the conditions when her fall occurred. Since that was at night, so sunlight was not illuminating the room through the windows, Plaintiff wants a site inspection when it is not daylight. She is willing to do that after the bar and grill has shut down for the night – or under other conditions that will approximate the lighting at night. *See Andrews v. Barker Brothers Corp.* (1968) 267 Cal.App.2d 530, 537 (citing *Garcia v. Hoffman* (1963) 212 Cal.App.2d 530: "It is the settled rule that evidence of the results of experiments as to a disputed fact is not admissible unless the conditions of the experiment are substantially identical to those out of which the dispute arises.").

Nonetheless, on reply, Defendant dismisses this.

For the first time on reply, Defendant argues that –apart from the issue of whether the site inspection takes place outside or during business hours – Plaintiff is not entitled an inspection during non-daylight hours because she has never raised lighting as an issue before and, in any event, Plaintiff will not be able to closely approximate the conditions at the time of her fall. As to Defendant's first point, the purpose of discovery is to identify facts bearing on the validity of the claims asserted. The fact that Plaintiff has not previously asserted that lack of lighting/visibility contributed to her fall does not foreclose her from discovering if it was.

On the latter point, Defendant points to the fact that the fall happened during winter when it was or had been raining – and there is no way to recreate such conditions in the spring/summer. [Reply at 5:7-17.] It is worth noting that Defendant can only make this argument because of its motion for a protective order. Had the parties agreed to a site inspection when Defendant filed this motion, it could have been set in the winter.

In any event, the fact that Plaintiff cannot replicate the identical conditions does not mean there is no value in replicating a substantial portion of them.

The admissibility of accident reconstruction evidence does not rest on the ability to recreate

		the circumstances of the accident with exactitude. The conditions on which the expert's analysis rests must simply be “substantially similar” to those of the actual occurrence. <i>Pannu v. Land Rover North America, Inc.</i>, (2011) 191 Cal.App.4th 1298, 1318. Photographs of the accident scene, although “highly pertinent” evidence (<i>People v. Turner</i> (1990) 50 Cal.3d 668, 706) must be made under “substantially similar”—but not necessarily identical—conditions. <i>Anello v. Southern Pacific Co.</i> (1959) 174 Cal.App.2d 317, 323. “The standard that must be met in determining whether the proponent of the experiment has met the burden of proof of establishing the preliminary fact essential to the admissibility of the experimental evidence is whether the conditions were substantially identical, not absolutely identical.” <i>Culpepper v. Volkswagen of America, Inc.</i> (1973) 33 Cal.App.3d 510, 521. It is too soon at the discovery stage to foreclose Plaintiff’s inquiry. The admissibility of evidence derived from the inspection can be determined at trial. For all the above reasons, the motion is denied. Plaintiff is awarded sanctions in the amount of \$1,985 against Defendant, to be paid within 30 days. Plaintiff to give notice.
111	2023-01345045 Xing vs. Cao	Motion to Compel Arbitration Defendant Pingchao Cao’s motion to compel arbitration of Plaintiff Jianyong Xing claims in his Second Amended Complaint is continued to June 9, 2025 at 2:00 pm in Dept. C27. Defendant moves for an order to compel Plaintiff to arbitrate his claims before the Shijiazhuang Arbitration Commission under the laws of the People’s Republic of China, and to dismiss this lawsuit. Counsel for Plaintiff filed a declaration in opposition stating that he is moving to withdraw as counsel because he has lost contact with his client who he believes resides in China. (Sipprelle Decl., ¶¶ 2-3.) He states that because he has lost all contact with Plaintiff he has been unable to obtain the information and documentation which would be necessary to oppose Defendant’s motion to compel arbitration, and believes it would be manifestly unjust for the Court to proceed with the hearing on Defendant’s motion to compel arbitration as scheduled. (Sipprelle Decl., ¶ 4.) Counsel currently has a motion to be relieved scheduled for July 14, 2025. The Court finds that under these circumstances the interests of justice will be best served by continuing the hearing on the motion to compel arbitration, and advancing the hearing on the motion to withdraw as counsel. No prejudice to Defendant has been demonstrated that would result from a brief continuance of his motion. Plaintiff counsel’s motion to be relieved as counsel of record is advanced to this date and continued to May 19, 2025 at 2:00 p.m. in Department C27. Plaintiff’s counsel is ordered to give notice of all rulings to all parties, including his client at his last known address(es).